

23STCV28732 23STCV28732

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Case Number: 23STCV28732 Hearing Date: September 21, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September

21, 2026 TRIAL

DATE: October 5, 2026

CASE: Casetta Signater

v. Keppel Union School District

CASE NO.: 23STCV28732

DEFENDANT

KEPPEL UNION SCHOOL DISTRICT'S MOTION FOR JUDGMENT ON THE PLEADINGS

DEFENDANT

KEPPEL UNION SCHOOL DISTRICT'S MOTION TO COMPEL THE DEPOSITIONS OF PLAINTIFF
CASETTA SIGNATER'S EXPERT WITNESSES OR, IN THE ALTERNATIVE, MOTION TO STRIKE
AND FOR SANCTIONS

DEFENDANT

KEPPEL UNION SCHOOL DISTRICT'S MOTION TO COMPEL DOCUMENTS IN RESPONSE TO
DEPOSITION REQUESTS FOR PRODUCTION OF DOCUMENTS AND CONTEMPORANEOUS DEPOSITION NOTES,
TO ALLOW FOR THE CONTINUATION OF PLAINTIFF CASETTA SIGNATER'S DEPOSITION, AND
FOR SANCTIONS

DEFENDANT

KEPPEL UNION SCHOOL DISTRICT'S MOTION TO BIFURCATE TRIAL REGARDING LIABILITY
AND DAMAGES AND MOTION IN LIMINE NO. 8 TO PRECLUDE EVIDENCE REGARDING DAMAGES
PRIOR TO LIABILITY BEING

ESTABLISHED

Plaintiff Casetta Signater ("Plaintiff") brings this employment action against defendant Keppel Union District School ("Defendant"). Before the court are four motions filed by Defendant: (1) motion for judgment on the pleadings; (2) motion to compel the depositions of Plaintiff's experts or, in the alternative, motion to strike; (3) motion to compel documents in response to deposition requests for production of documents and contemporaneous deposition notes, to allow for the continuation of Plaintiff's deposition; and (4) motion to bifurcate trial. The court addresses these matters in turn.

I. DISCUSSION
RE MOTION FOR JUDGMENT ON THE PLEADINGS

A. Background

On April 10, 2025, Plaintiff filed the operative First Amended Complaint ("FAC") against Defendant alleging causes of action for (1) race discrimination in violation of FEHA; (2) race retaliation in violation of FEHA; (3) failure to prevent discrimination/retaliation in violation of FEHA, and (4) violation of Labor Code section 1102.5(b).

On August 25, 2026, Defendant filed a motion for judgment on the pleadings on the fourth cause of action.

On September 8, 2026, Plaintiff filed an opposition.

On September 14, 2026, Defendant filed a reply.

B. Judicial Notice

Plaintiff requests judicial notice of this court's orders issued on May 8, 2026 and August 28, 2026. The unopposed request is GRANTED.

C. Legal Standard

“A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed.” [Citations.]” (Burnett v. Chimney Sweep (2004) 123 Cal.App.4th 1057 1064.) The court must assume the truth of all properly pleaded material facts and allegations, but not contentions or conclusions of fact or law. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Wise v. Pacific Gas and Elec. Co. (2005) 132 Cal.App.4th 725, 738.) “A judgment on the pleadings in favor of the defendant is appropriate when the complaint fails to allege facts sufficient to state a cause of action. (Code Civ. Proc., § 438(c)(3)(B)(ii).)” (Kapsimallis v. Allstate Ins. Co. (2002) 104 Cal.App.4th 667, 672.) “Presentation of extrinsic evidence is therefore not proper on a motion for judgment on the pleadings.” (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999.) “The common law ground for a motion for judgment on the pleadings is identical to the statutory ground[.]” (Korchemny v. Piterman (2021) 68 Cal.App.5th 1032, 1055.) Allegations are to be liberally construed. (Code Civ. Proc., § 452.)

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If the motion for judgment on the pleadings is granted, it may be granted with or without leave to amend. (Code Civ. Proc., § 438(h)(1).) “Where a demurrer is sustained or a motion for judgment on the pleadings is granted as to the original complaint, denial of leave to amend constitutes an abuse of discretion if the pleading does not show on its face that it is incapable of amendment.” (Virginia G. v. ABC Unified School Dist. (1993) 15 Cal.App.4th 1848, 1852.)

D. Application

1. Timeliness

Plaintiff argues this motion is untimely. Not so.

“No motion [for judgment on the pleadings] may be made pursuant to this section if a pretrial conference order has been entered pursuant to Section 575, or within 30 days of the date the action is initially set for trial, whichever is later, unless the court otherwise permits.” (Code Civ. Proc., § 438(e).)

Here, the court has not filed a pretrial conference order. Accordingly, the motion is timely.

2. Fourth Cause of Action

The

basis for Defendant's motion is straightforward. Defendant argues the fourth cause of action is defective because Plaintiff did not file a claim for money or damages with Defendant prior to asserting her fourth cause of action nor does the FAC plead compliance with the Tort Claims Act.

The second

ground is meritorious. " 'The Government Claims Act (§ 810 et seq.) "establishes certain conditions precedent to the filing of a lawsuit against a public entity. As relevant here, a plaintiff must timely file a claim for money or damages with the public entity. (§ 911.2.) The failure to do so bars the plaintiff from bringing suit against that entity. (§ 945.4.)" [Citation.]' " (J.J. v. County of San Diego (2014) 223 Cal.App.4th 1214, 1219.). " 'Claims for personal injury must be presented not later than six months after the accrual of the cause of action.... (§ 911.2, subd. (a).) Timely claim presentation is not merely a procedural requirement, but is a condition precedent to the claimant's ability to maintain an action against the public entity. [Citation.] "Only after the public entity's board has acted upon or is deemed to have rejected the claim may the injured person bring a lawsuit alleging a cause of action in tort against the public entity." [Citation.]' " (Id.) " 'The failure to timely present a claim to the public entity bars the claimant from filing a lawsuit against that public entity. [Citation.]' " (Ibid.) A claim against a public entity is subject to demurrer for failure to plead compliance with the Government Claims Act. (State of California v. Superior Court 92004) 32 Cal.4th 1234; Le Mere v. Los Angeles Unified School Dist. (2019) 35 Cal.App.5th 237.)

Here, the

FAC does not plead compliance with the Government Claims Act. Contrary to Plaintiff's position, this is a defect that is apparent from the face of the pleading. The fourth cause of action is defective.

E. Conclusion

The motion for judgment on the pleadings is GRANTED WITH LEAVE TO AMEND. Plaintiff is ordered to

serve and file the Second Amended Complaint within 5 court days of this order which includes the government claim as an exhibit to the pleading or alternatively, which alleges facts sufficient to excuse compliance.

II. DISCUSSION RE MOTION TO COMPEL PLAINTIFF EXPERT DEPOSITIONS

A. Background

On August 25, 2026, Defendant filed a motion to compel the depositions of Plaintiff's experts or, alternatively, to strike their testimony. Defendant requests sanctions against Plaintiff and her counsel.

On September 8, 2026, Plaintiff filed an opposition. Plaintiff requests sanctions against Defendants and its counsel.

On September 14, 2026, Defendant filed a reply.

B. Analysis

Similar to the flurry of recent and burdensome filings, the parties blame each other for this discovery dispute. Both parties are at fault. Defendant improperly noticed the depositions for dates Plaintiff's counsel was not available. Defendant does not address this point at all. However, Defendant is entitled to take the depositions of Plaintiff's experts. Plaintiff's counsel did not meaningfully attempt to resolve this issue which forced Defendant to file this motion.

C. Conclusion

The motion is GRANTED. Plaintiff is ordered to produce her experts for deposition within 10 days of this order. The court, in its discretion, declines to impose sanctions in connection to this motion.

III. DISCUSSION RE MOTION TO COMPEL DOCUMENTS AND DEPOSITION

A. Background

On

August 25, 2026, Defendant filed a motion to compel Plaintiff to produce documents and to appear for further deposition.

Defendant requests sanctions against Plaintiff and her counsel.

On September 8, 2026, Plaintiff filed an opposition. Plaintiff requests sanctions against Defendants and its counsel.

On

September 14, 2026, Defendant filed a reply.

B. Analysis

Defendant

moves the court for an order concerning the following: (1) compelling Plaintiff to produce her Loan Documents, Employment Documents, and Notes, (2) compelling Plaintiff to produce notes she took contemporaneously during her deposition; (3) compelling Plaintiff to appear for another deposition, limited to the foregoing documents; (4) whether to impose sanctions.

As a threshold issue, the court notes the first issue is largely moot as is the third issue. Plaintiff has produced (or maintains she intends to produce) all the requested documents, except for her notes. Plaintiff also agreed to appear for deposition limited to the Loan and Employment Documents. The court proceeds to consider the remaining issues.

1.

Contemporaneous Notes

The court will order the production of Plaintiff's notes. "Subdivision (a) of section 771 of the Evidence Code provides, as relevant, that "if a witness, either while testifying or prior thereto, uses a writing to refresh his memory with respect to any matter about which he testifies, such writing must be produced at the hearing at the request

of an adverse party and, unless the writing is so produced, the testimony of the witness concerning such matter shall be stricken....” (International Ins. Co. v. Montrose Chemical Corp. (1991) 231 Cal.App.3d 1367, 1372 (footnote omitted).) Here, Plaintiff clearly testified during her deposition that she was taking notes and that those notes were “helping me center my thoughts, yes.” (Walsh Decl., Ex. E. pp. 262-263.) Contrary to Plaintiff’s position, Evidence Code section 771 requires the production of her contemporaneous notes made during her deposition. (See, e.g., International Ins. Co. v. Montrose Chemical Corp., 231 Cal.App.3d 1367 [affirming trial court order ordering the production of documents which were used to refresh a deponent’s recollection pursuant to Evidence Code section 771].)

2. Sanctions

The court finds sanctions against Plaintiff and her counsel of record are warranted. Plaintiff did not respond to binding authority which directs the production of her contemporaneous notes. Accordingly, sanctions are imposed against Plaintiff and her counsel of record in the reduced sum of \$1,000.

C. Conclusion

The motion is GRANTED. Plaintiff is ordered to produce all documents that are the subject of this motion (if not already produced) within 5 days of this order and to appear for deposition within 10 days of this order. Plaintiff and her counsel of record are ordered to pay, jointly and severally, sanctions in the sum of \$1,000 within 30 days of this order.

IV. DISCUSSION RE MOTION TO BIFURCATE

A. Background

On August 25, 2026, Defendant filed this motion to bifurcate trial regarding liability and damages and motion in limine no. 8 to preclude evidence regarding damages prior to liability being established.

The motion

and motion in limine are unopposed.

B. Legal Standard for Bifurcation and Application

The motion to bifurcate is denied. Code of Civil Procedure Section 598 provides pertinent in part, "The court may, when the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation would be promoted thereby, on motion of a party, after notice and hearing, make an order, no later than the close of pretrial conference in cases in which such pretrial conference is to be held, or, in other cases, no later than 30 days before the trial date, that the trial of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case, except for special defenses which may be tried first pursuant to Sections 597 and 597.5." (Code Civ. Proc., § 598.)

Similarly, "[t]he court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial . . . of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States." (Code Civ. Proc., § 1048, subd. (b).)

The objective behind a bifurcation of liability from damages is to avoid "the waste of time and money caused by the unnecessary trial of damage questions in cases where the liability issue is resolved against the plaintiff." (*Trickey v. Superior Court In and For Sacramento County* (1967) 252 Cal.App.2d 650, 653.)

Here, the interests of expedition and economy are not served by bifurcation where the issues of damages and liability are intertwined. For instance, Plaintiff's discrimination and retaliation claims require that she prove she was harmed by Defendant's conduct. If the issues of liability and damages were bifurcated, the same witnesses and evidence will be introduced at both phases of trial.

C. Conclusion

The motion to bifurcate trial is DENIED.

Motion in
Limine No. 8 is DENIED.

V. DISPOSITIONS

1.

The motion for judgment on the pleadings is Granted With Leave to Amend. Plaintiff is ordered to serve and file the Second Amended Complaint within 5 court days of this order. The applicable government claim must be attached an exhibit to the pleading or alternatively, the SAC must allege facts sufficient to excuse compliance.

2. The motion to

compel Plaintiff's experts' depositions is Granted. Plaintiff is ordered to produce her experts for deposition within 10 days of this order.

The court, in its discretion, declines to impose sanctions in connection to this motion.

3.

The motion to compel documents and further deposition is Granted. Plaintiff is ordered to produce all documents that are the subject of this motion (if not already produced) within 5 days of this order and to appear for deposition within 10 days of this order. Plaintiff and her counsel of record are ordered to pay, jointly and severally, sanctions in the sum of \$1,000 within 30 days of this order.

4. The motion to bifurcate and motion in limine
no. 8 are Denied.

Dated: September 21,
2026

Brock T. Hammond

Judge of the Superior Court